

S.K.Towers vs Harish Chander on 19 June, 2025

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APHC010151202025

IN THE HIGH COURT OF ANDHRA PRADES.
AT AMARAVATI

THURSDAY, THE NINETEENTH DAY OF JUNE
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRUUSTICE V. GOPALA KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 104 OF 2025

Between:

Smt Bendapudi (Wupadrasta) Tejaswini, W/o.Bendapudi Vikram Mallik,
aged 26 years, Hindu, Housewife, R/o.Flat No.204 and

S.K.Towers, Street, Kothagraharam, Vizianagaram.

...Petit

AND

X Sri Bendapudi Vikram Mallik, S/o.Dr.Perraju, aged 36 years, Hindu,
Occ;Director, Banganapalle Technologies Pvt Ltd, Residing at D.No.1-
41/18, Revenue Ward-5, Chanikyapuri Layout, Potula Mallayampalem,
Visakhapatnam.

...Respondent

Petition filed'under Section 24 of the C.P.C. Praying that i

circumstances stated in the affidavit filed therewith, the High Court may be
pleased to Order for Transfer of F.C.O.P 2335 of 2024, pending on the file of
Family Judge-Cum-V Additional District Judge, Visakhapatnam, filed by the

respondent against petitioner, to be withdrawn from its file to be transferred the Court of Family Judge, at Vizianagaram, to be tried simultaneously along with F.C.M.C.No.19 of 2025, on the file of the Family Judge, Vizianagaram filed by petitioner against the respondent.
LA NO: 1 OF 2025

Petition filed under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to stay all further proceedings of F.C.O.P.No.2335 of 2024, pending on the file of Family Judge-Cum-V Additional District Judge, Vishakhapatnam, pending disposal of the Transfer Petition.

Counsel for the Petitioner: Smt. Swati Guda

Counsel for the Respondent: None appeared
The Court made the following:

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THE HON'BLE SRI JUSTICE V.GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.104 of 2025

ORDER:

Today when the matter is taken up for hearing, Smt. Swati Guda, learned counsel for the petitioner has represented that the proof of service memo dated 16.06.2025, along with the postal acknowledgment card is filed before the Registry and the same is placed on the record. As per the postal acknowledgment card, the registered notice sent to the respondent was served on him. Therefore, service held sufficient. None appeared for the respondent.

2. The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw F.C.O.P.No.2335 of 2024, on the file of the Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam and transfer the same to the Family Court at Vizianagaram.

3. The case of the petitioner in brief is as follows;

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1. The petitioner is the legally wedded wife of the respondent and their marriage has been performed at Vizianagaram on 15.08.2024 as per Hindu rites and customs. In view of the matrimonial disputes

between both the parties, the petitioner/wife is staying at her parents' house at Kothagraharam, Vizianagaram and depending upon the mercy of her parents. The petitioner pleaded that she had lodged a complaint before the Disha Police Station, Vizianagaram under Section 85 BNS and under Section 4 of the Dowry Prohibition Act vide Cr.No.108 of 2024 and the same is pending for investigation. The petitioner further pleaded that she had filed a Maintenance Case vide F.C.M.C.No.19 Of 2025 on the file of the Judge, Family Court, Vizianagaram and the respondent is attending the Court proceedings in the aforesaid case at Vizianagaram. The learned counsel for the petitioner would contend that to cause inconvenience to the petitioner, the respondent/husband filed F.C.O.P.No.2335 of 2024, on the file of the Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam under Section 12(1)(b)(c) 2(b) r/w Section 5(ii)(b) of the Hindu Marriage Act, 1955, seeking for nullity of the marriage.

Learned counsel for the petitioner further contended that the petitioner being a woman, depending upon the mercy of her parents, it is very difficult for her to travel at a distance of more than 60Kms from Vizianagaram to Visakhapatnam for attending the case proceedings before the learned Judge, Family Court- Cum-V Additional District Judge, Visakhapatnam, on each and every date of adjournment without any male support and that she was constrained to file the .^present petition against the respondent/husband seeking to withdraw F.C.O.P.No.2335 of 2024, on the file of the Judge, Family Court-Cum-V _ District Judge, Visakhapatnam and transfer the same to the Family Court at Vizianagaram.

4. Heard Smt. Svyati Guda, learned counsel for the petitioner. Though registered notice sent to the respondent was served on him, none appeared for the respondent. Therefore, service held sufficient. Perused the material available on record.

5. The material on record prima facie goes to show that in view of the matrimonial disputes between both the parties, the petitioner/wife is staying at her parents' house at Kothagraharam, Vizianagaram and she had lodged a complaint before the Disha Police Station, Vizianagaram under Section 85 BNS and under Section 4 of the Dowry Prohibition Act vide Cr.No.108 of 2024 and also filed a Maintenance Case vide F.C.M.C.No.19 Of 2025, on the file of the Judge, Family Court, Vizianagaram and the respondent is attending the Court proceedings in the aforesaid case at Vizianagaram. The respondent/husband has filed F.C.O.P.No.2335 of 2024, on the file of the Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam, under Section 12(1)(b)(c) 2(b) r/w Section 5(ii)(b) of the Hindu Marriage Act, 1955, seeking for nullity of the marriage.

6. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER , held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

7. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha^ h^ld as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to

consider the plea of transfer, the Courts have to take Into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties In eking out their livelihood and (under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

^ (2000) 10 see 304 ^ 2022 LiveLaw (SC) 627 m

8. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be considered than that of the inconvenience of the husband. Therefore this Court is of the considered view that there are grounds to consider the request of the petitioner/wife to withdraw F.C.O.P.No.2335 of 2024, on the file of the Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam and transfer the same to the Family Court at Vizianagaram.

9. In the result, the present petition is allowed and F.C.O.P.No.2335 of 2024 , on the file of the Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam, is hereby withdrawn and transferred to the Family Court at Vizianagaram. The Judge, Family Court-Cum-V Additional District Judge, Visakhapatnam, shall transmit the case record in F.C.O.P.No.2335 of 2024 to the Family Court at Vizianagaram, duly indexed as expeditiously as possible preferably within a period of two (02) week^from the date of receipt of a copy of the order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

Sd/- K SRINIVASA RAJU

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ASSISTANT REGISTRAR

To,
1. The Judge, Family Court-Cum-V Additional District Judge
Visakhapatnam, Visakhapatnam District.

2. The Judge, Family Court, at Vizianagaram, Vizianagaram District.

3. Smt Bendapudi (Wupadrasta) Tejaswini, W/o.Bendapudi Vikram Mallik St street, Kothagraharam Vizianagaram.

4. Sri Bendapudi Vikram Mallik, S/o. Dr.Perraju, Occ: Director, Banganapalle Technologies Pvt Ltd, Residing at D.No.1-41/18, Revenue Ward-5, Chanikyapuri Layout, Potula Mallayampalem,

Visakhapatnam.

5. One CC to Smt Swati Guda, Advocate [OPUC]

6. Two CD Copies BSV sree \ HIGH COURT \ \ DATED; 19/06/2025 \ ORDER X ALLOWING THE TR.C.M.P WITHOUT COSTS